

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #15	CCRB Case #: 201701610	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 02/23/2017 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/23/2018	Precinct: 48		
Date/Time CV Reported Thu, 02/23/2017 10:06 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/01/2017 11:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Natasha Dennis	19819	958491	048 PCT
2. POM Namel Holguin	03109	960674	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Namel Holguin	Discourtesy: Police Officer Namel Holguin spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Namel Holguin	Abuse: Police Officer Namel Holguin entered § 87(2)(b) in the Bronx.	B . Substantiated
C . POM Namel Holguin	Discourtesy: Police Officer Namel Holguin spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POF Natasha Dennis	Force: Police Officer Natasha Dennis used a chokehold against § 87(2)(b)	D . Unfounded
E . POF Natasha Dennis	Force: Police Officer Natasha Dennis restricted the breathing of § 87(2)(b)	E . Unfounded
F . POM Namel Holguin	Force: Police Officer Namel Holguin used a chokehold against § 87(2)(b)	F . Unfounded
G . POM Namel Holguin	Force: Police Officer Namel Holguin restricted the breathing of § 87(2)(b)	G . Unfounded
H . POM Namel Holguin	Force: Police Officer Namel Holguin used physical force against § 87(2)(b)	H . Exonerated
I . POM Namel Holguin	Force: Police Officer Namel Holguin struck § 87(2)(b) with an ASP.	I . Exonerated
J . POM Namel Holguin	Force: Police Officer Namel Holguin struck § 87(2)(b) with an ASP.	J . Unsubstantiated
K . POF Natasha Dennis	Force: Police Officer Natasha Dennis used physical force against § 87(2)(b)	K . Exonerated

Case Summary

On February 23, 2017, Sgt. Anthony Perlongo of the 48th Precinct called the IAB Command Center and reported that an officer used force against § 87(2)(b) while apprehending him. IAB forwarded this information to the CCRB, where it was received on March 1, 2017.

On February 23, 2017, at approximately 1:30 p.m., PO Namel Holguin and PO Natasha Dennis, both from the 48th Precinct, responded to a radio run indicating that § 87(2)(b) was violating an order of protection at § 87(2)(b) in the Bronx. Upon arriving, PO Holguin and PO Dennis reportedly spoke with a mother and her two children who alleged that § 87(2)(b) was yelling profanities and kicking at a door which leads from § 87(2)(b)'s basement apartment into the apartment of the mother and two children.

PO Holguin and PO Dennis proceeded to the rear of § 87(2)(b) and knocked on the door of § 87(2)(b)'s basement apartment. § 87(2)(b) alleged that PO Holguin told him to, "Open up the fucking door." (**Allegation A**). § 87(2)(b) opened his apartment door. § 87(2)(b) alleged that immediately upon opening the door, PO Holguin stuck his foot inside the apartment (**Allegation B**). § 87(2)(b) testified that he asked why the officers were there. § 87(2)(b) alleged that PO Holguin responded that when he knocks, § 87(2)(b) must open the "motherfucking door." (**Allegation C**). § 87(2)(b) alleged that PO Holguin grabbed him by the arm and chest areas of his jacket and pulled him outside his apartment (**subsumed into Allegation B**).

This case has video evidence, a Snagit copy of which was placed below. The original videos may be found in Board Reviews 01-04, and a summary of the video footage may be found at Board Review 05.



201701610_20170627_1645_DM.mp4

Video footage appears to confirm that PO Holguin entered the apartment and that he pulled § 87(2)(b) out of his apartment. Once outside of the apartment, PO Dennis and PO Holguin attempted to handcuff § 87(2)(b). Both PO Dennis and PO Holguin testified that § 87(2)(b) was being arrested for § 87(2)(b).

§ 87(2)(b) alleged that PO Dennis pulled down on the front collar of his jacket, causing the fabric to become taught against his neck, restricting his breathing for four to seven seconds (**Allegations D and E**). § 87(2)(b) alleged that PO Holguin stood behind him and pressed the inside of his elbow against the front of § 87(2)(b)'s neck, restricting his breathing for about 30 seconds (**Allegations F and G**).

Video footage shows § 87(2)(b) punching PO Holguin two times, although § 87(2)(b) denied ever throwing a punch during the incident. Video footage appears to show PO Holguin punching § 87(2)(b) two times, although it is unclear where the punches land on § 87(2)(b)'s person (**Allegation H**). Video footage appears to show PO Holguin striking § 87(2)(b) in the leg approximately five times with an ASP (**Allegation I**).

§ 87(2)(b) alleged that PO Holguin struck him in the head with an ASP four to seven times (**Allegation J**). § 87(2)(b) alleged that PO Dennis punched him in his chest, ribs, and sides approximately five times (**Allegation K**).

The physical encounter between § 87(2)(b) and the officers began at the rear of § 87(2)(b) and concluded in the front of the location. It is undisputed that § 87(2)(b) was

not secured in handcuffs until backup officers arrived and handcuffed him near the front gate of the location.

As a result of this incident § 87(2)(b) PO Holguin, and PO Dennis each sustained injuries and each received medical treatment (Board Review 06). § 87(2)(b)

This case surpassed the 90 day benchmark, because it took over two months to receive requested video footage from the Patrol Borough Bronx Investigation Unit.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b)'s arrest (Board Review 07).
- A Notice of Claim inquiry was submitted with the New York City Comptroller's Office on June 28, 2017 (Board Review 08). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 10).
- PO Holguin has been a member of service for one year, and this is the first CCRB complaint filed against him.
- PO Dennis has been a member of service for one year, and this is the first CCRB complaint filed against her.

Potential Issues

- § 87(2)(b) declined to sign medical release forms, so the CCRB was unable to review § 87(2)(b)'s medical records.
- A witness to the incident provided an unverified telephone statement (Board Review 11), but refused to answer follow up questions, provide her name, or provide a sworn statement. The witness answered the telephone number that dialed 911 during this incident and indicated that she called 911 during the incident.

Findings and Recommendations

Allegation not pleaded

§ 87(2)(g)

Allegation A – Discourtesy: Police Officer Namel Holguin spoke discourteously to § 87(2)(b)

It is undisputed that PO Holguin (Board Review 12) and PO Dennis (Board Review 13) knocked on the door of § 87(2)(b)'s basement apartment at § 87(2)(b) in the Bronx. Both PO Holguin and PO Dennis testified that they intended to arrest § 87(2)(b) for § 87(2)(b) (Board Review 14). Video footage shows that § 87(2)(b) answered the door, and after a few seconds, he closed it. It further shows that PO Holguin and PO Dennis remained outside for approximately two minutes until § 87(2)(b) again opened the door.

§ 87(2)(b) (Board Review 15) alleged that while he was inside of his apartment, PO Holguin told him to “open up the fucking door.” Both PO Holguin and PO Dennis denied that PO Holguin said this. PO Holguin testified that he did not recall using profanity at any point during the incident.

The unidentified witness did not indicate whether PO Holguin made the alleged discourteous remark, and the witness refused to cooperate in answering follow up questions. The video footage does not contain audio, nor does it provide an angle where it is feasible to read PO Holguin's lips.

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Namel Holguin entered § 87(2)(b) in the Bronx.

Video footage shows that PO Holguin pulled § 87(2)(b) from the threshold of his apartment outside and that PO Dennis proceeds to attempt to place § 87(2)(b) in handcuffs. Video footage further shows that PO Holguin walked several steps inside the apartment, opened a door, and then exited the apartment after solely visually inspecting the apartment for a couple of seconds.

PO Holguin acknowledged physically moving § 87(2)(b) from the threshold outside of the apartment. Both PO Holguin and PO Dennis testified that § 87(2)(b) was under arrest for violating the order of protection when PO Holguin removed § 87(2)(b) from his apartment. § 87(2)(b) was ultimately arrested.

PO Holguin initially denied physically entering the apartment, but upon being presented the video footage, he acknowledged entering the apartment. PO Holguin testified that the sole reason he entered the apartment was to ensure that no one else was inside the apartment that could ambush him and PO Dennis. Both PO Holguin and PO Dennis testified that there was no indication that anyone else was inside the apartment, or that there was anything else occurring inside the apartment.

PO Holguin testified that after he physically removed § 87(2)(b) from the threshold, he asked § 87(2)(b) s permission to enter the apartment, and § 87(2)(b) said that he did not mind. Neither § 87(2)(b) nor PO Dennis indicated that PO Holguin asked permission to enter or that § 87(2)(b) gave permission for PO Holguin to enter.

An officer may make a warrantless arrest of an individual who stands on the threshold of their private residence's open front door. People v. Garvin, 130 A.D.3d 644. (Board Review 17). An officer may only conduct a cursory visual inspection of an arrestee's apartment for the purpose of preventing an ambush, if there is some reason to fear an ambush. People v. McAllister,

35 A.D.3d 300. (Board Review 18). Consent to enter a private apartment must be a free and unconstrained choice; official coercion, even if deviously subtle, nullifies apparent consent. People v. Gonzalez, 39 N.Y.2d 122 (1976). (Board Review 21).

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation C – Discourtesy: Police Officer Namel Holguin spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that after he opened his apartment door, he asked PO Holguin and PO Dennis why they were there. § 87(2)(b) alleged that PO Holguin responded by saying that when he knocks § 87(2)(b) has to open the “motherfucking” door.

PO Holguin denied saying this, and he testified that he did not recall using profanity at any point during the incident. PO Dennis denied hearing PO Holguin make the alleged discourteous remark.

The unidentified witness did not indicate whether PO Holguin made the alleged discourteous remark, and the witness refused to cooperate in answering follow up questions. The video footage does not contain audio, nor does it provide an angle where it is feasible to read PO Holguin’s lips.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D – Force: Police Officer Natasha Dennis used a chokehold against § 87(2)(b)

Allegation E – Force: Police Officer Natasha Dennis restricted the breathing of § 87(2)(b)

It is undisputed that there was a struggle to place § 87(2)(b) in handcuffs. The struggle lasted for approximately two minutes and moved from the rear to the front of § 87(2)(b). § 87(2)(b) alleged that when PO Dennis first approached him, she pulled the fabric of his jacket tight against his neck, restricting his breathing for four to seven seconds.

PO Dennis acknowledged holding onto the shoulder fabric of § 87(2)(b)'s jacket. She and PO Holguin testified that § 87(2)(b) was attempting to run away from them, prior to him being secured in handcuffs. PO Dennis denied pulling the fabric of the jacket against § 87(2)(b)'s neck, although she acknowledged that his jacket did go up over his head and off during the struggle to apprehend him. PO Holguin denied seeing PO Dennis pull the fabric against § 87(2)(b)'s neck.

The anonymous witness indicated that they did not recall seeing an officer pull § 87(2)(b)'s clothing tight against his neck. As discussed in the 'Potential Issues' section, § 87(2)(b) refused to sign medical release forms, so the investigation was unable to determine if medical records noted an injury consistent with the alleged force.

Video footage indicates that § 87(2)(b)'s jacket is eventually removed from his person during the struggle to apprehend him, but it does not show PO Dennis pulling the fabric tight against § 87(2)(b)'s neck. The video does not definitively show whether the alleged actions occurred, because there are moments that the parties are out of the frame of the camera and moments where the view of the various parties is obstructed.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Unfounded**.

Allegation F – Force: Police Officer Namel Holguin used a chokehold against § 87(2)(b)

Allegation G – Force: Police Officer Namel Holguin restricted the breathing of § 87(2)(b)

§ 87(2)(b) alleged that PO Holguin stood from behind him and placed his arm around § 87(2)(b)'s neck, restricting his breathing for approximately 30 seconds. PO Holguin denied putting his arm around § 87(2)(b)'s neck or restricting his breathing. PO Dennis denied seeing PO Holguin do this.

The anonymous witness did not recall seeing PO Holguin do this. Video footage does not show PO Holguin placing his arm around § 87(2)(b)'s neck, although there are moments that the parties are out of the frame of the camera and moments where the view of the various parties is obstructed. As discussed in the 'Potential Issues' section, § 87(2)(b) refused to sign medical release forms, so the investigation was unable to determine whether medical records noted an injury consistent with the alleged actions.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations F and G** be closed as **Unfounded**.

Allegation H – Force: Police Officer Namel Holguin used physical force against § 87(2)(b)

Video footage shows PO Holguin throwing two punches towards § 87(2)(b) although it is unclear where exactly the strikes land on § 87(2)(b)'s person. § 87(2)(b) did not allege that PO Holguin punched him, although he alleged that he was punched (by PO Dennis) in the ribs, chest, both sides, and potentially—although he did not recall—in the lip. PO Holguin testified that he punched § 87(2)(b) two to three times in the ribs in an attempt to apprehend him.

Video footage shows that PO Holguin threw the two punches shortly after § 87(2)(b) threw at least one punch at PO Holguin. § 87(2)(b) was not in handcuffs and he was actively resisting when PO Holguin punched him. Both PO Holguin and PO Dennis testified that § 87(2)(b) punched them both prior to PO Holguin punching § 87(2)(b) and that § 87(2)(b) never stopped resisting arrest until he was secured in handcuffs. The anonymous witness indicated that § 87(2)(b) violently resisted and fought against the officers, including pushing, kicking, and punching them.

An officer may use force to place a person in custody, but solely the force reasonable under the circumstances. NYPD Patrol Guide, Section 221-01. (Board Review 19).

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Exonerated**.

Allegation I – Force: Police Officer Namel Holguin struck § 87(2)(b) with an ASP.

Video footage shows PO Holguin striking § 87(2)(b) in the legs with an ASP approximately five times. Video footage shows that § 87(2)(b) was not secured in handcuffs when PO Holguin struck § 87(2)(b) with the ASP, and that § 87(2)(b) was actively resisting arrest when PO Holguin struck him.

PO Holguin acknowledged striking § 87(2)(b) in the legs with an ASP, indicating that it was in an attempt to control and apprehend § 87(2)(b). The anonymous witness indicated that § 87(2)(b) violently resisted and fought against the officers, including pushing, kicking, and punching them.

An officer may use force to place a person in custody, but solely the force reasonable under the circumstances. NYPD Patrol Guide, Section 221-01.

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **Exonerated**.

Allegation J – Force: Police Officer Namel Holguin struck § 87(2)(b) with an ASP.

§ 87(2)(b) alleged that PO Holguin struck him on the top of his head with an ASP four to seven times. § 87(2)(b) sustained a laceration to the top of his head, which was documented by a photograph taken by IAB on the date of the incident (Board Review 16).

PO Holguin denied intentionally striking § 87(2)(b) in the head with an ASP, but he testified that he may have accidentally done so. PO Holguin testified that he did not remember striking § 87(2)(b) in the head, accidentally or intentionally, but he probably did. PO Dennis denied seeing PO Holguin strike § 87(2)(b) on the head with an ASP.

The anonymous witness stated that they saw PO Holguin use an ASP against § 87(2)(b) but they did not recall where the strikes landed.

Video footage does not show PO Holguin strike § 87(2)(b) in the head with an ASP, but there are moments when the parties are out of the frame of the camera or when the view is partially obstructed.

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **Unsubstantiated**.

Allegation K – Force: Police Officer Natasha Dennis used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while PO Holguin was striking him in the head with an ASP, PO Dennis was punching him in his chest, ribs, and sides. § 87(2)(b) acknowledged that he was not yet under arrest when PO Dennis punched him, and that he was trying to escape to the front of § 87(2)(b) so that other civilians might see what was happening.

PO Dennis acknowledged punching § 87(2)(b) along the ribs and she believed that she once accidentally punched § 87(2)(b) in the face. PO Dennis testified that she was aiming for his ribs with each punch, but on one occasion § 87(2)(b) bent forward as she was punching, which resulted in PO Dennis striking § 87(2)(b) in the face. PO Holguin testified that PO Dennis punched § 87(2)(b) in the face, but he did not recall how many times or her punching § 87(2)(b) anywhere else on his person.

Video footage does not show PO Dennis clearly punching § 87(2)(b) at any point during the incident, but there are moments when the parties are out of frame or the view is partially obstructed. The anonymous witness indicated that § 87(2)(b) violently resisted and fought against the officers, including pushing, kicking, and punching them.

An officer may use force to place a person in custody, but solely the force reasonable under the circumstances. NYPD Patrol Guide, Section 221-01. An officer may use physical force to the extent she reasonably believes necessary to effect an arrest or to prevent an arrestee from escaping. New York State Penal Law, Section 35.30. (Board Review 20).

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **Exonerated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date